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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-31722-2026 (O&M)
DECIDED ON: 08.06.2026

MANJINDER SINGH @ GURPREET SINGH @ GOPI
.....PETITIONER(S)

VERSUS

STATE OF PUNJAB

...RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Mudit Johar, Advocate for the petitioner(s)

Mr. Gorav Kathuria, DAG, Punjab.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No. 65 dated 11.03.2026 under Sections 331(4), 305 and 317 (2) of the BNSS, 2023 registered at Police Station City Tarn Taran, District Tarn Taran, Punjab.

2 Contention

On behalf of the petitioner

At the outset, learned counsel for the petitioner submits that the petitioner is brother of daughter-in-law of the complainant and has been falsely implicated in the present case. He further submits that there is unexplained delay of two days in lodging the present FIR and there is no eye witness available of the alleged incident. It is his further contention that no recovery has been effected

from him. He contends that the co-accused persons namely Neelamjit Singh and Gagandeep Kaur @ Garewal Gagan Kaur have already been granted concession of regular bail by the lower Court, therefore, prays for grant of anticipatory bail to the petitioner.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Mr. Gorav Kathuria, DAG, Punjab, accepts notice on behalf of respondent/State. He could not controvert the submissions made by learned counsel for the petitioner.

3. **Analysis**

Be that as it may, having given due consideration to the submissions advanced, particularly to the fact that co-accused persons namely Neelamjit Singh and Gagandeep Kaur @ Garewal Gagan Kaur have already been granted concession of regular bail by the lower Court added with the fact that no recovery has been effected from the petitioner, thus custodial interrogation of the petitioner is not required at this stage.

In the light of above, this Court is of the considered view that there is no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also

abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

08.06.2026
nainarajput/anuradha

(SANDEEP MOUDGIL)
JUDGE

Whether speaking/reasoned
Whether reportable

:Yes/No
:Yes/No